

Inventorship Test

SLIBRARY 13 · SHEET 4 / 5

Can an AI be named an inventor?

PROFESSIONAL DEFINITION

The Inventorship Test addresses whether an AI system can be named as an inventor on a patent, a question that courts and offices have largely answered by requiring a human inventor.

WHO DEVELOPED IT

Crystallised through the DABUS litigation brought by Stephen Thaler across multiple jurisdictions, and analysed by scholars such as Ryan Abbott.

WHY IT WAS DEVELOPED

It was developed to resolve who, if anyone, can hold rights in inventions generated with substantial AI contribution.

FIGURE 1 · INVENTORSHIP TEST



Figure 1. A schematic of the Inventorship Test as applied in BARBM312 (illustrative).

HOW IT IS USED

The contribution of human and machine is examined against the legal requirement of a natural-person inventor; rights strategy follows the conclusion.

WHEN IT IS USED

When AI materially contributes to an invention and inventorship must be determined.

BY WHOM IT IS USED

Patent attorneys, R&D leaders and IP strategists.

INNOVATION RELATIVE TO THE PREDECESSOR TOOL

It marks the current legal boundary — that inventorship requires a human — with significant consequences for AI-driven R&D.

RELATED FRAMEWORKS IN THIS COURSE

IP Quadrant · Slibrary 13

Authorship Decision Tree · Slibrary 13

Patentability Funnel · Slibrary 13

Trademark Distinctiveness Spectrum · Slibrary 13

SOURCES (HARVARD REFERENCING STYLE)

Thaler v Comptroller-General of Patents (UK Supreme Court, 2023) UKSC 49.
Abbott, R. (2020) The Reasonable Robot. Cambridge: CUP.